

23STCV31774 23STCV31774

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-28

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C08%2F28%2F2026

Source SHA-256: f1ca4b07c0e6cbaa67d8222c7a43daddff5e36fa36e9fd26ce41bc4e8ea00ddc

Case Number: 23STCV31774 Hearing Date: August 28, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

August 28, 2026

CASE NUMBER

23STCV31774

MOTION

Motion to Continue Trial

MOVING PARTIES

Defendants WCP, Inc. (erroneously sued as West Coast Insulated Glass Products); Peter McCoy Construction; Architectural Iron Works; Kairos Manufacturing Inc. dba Architectural Iron Works; Peter Marino Architect, PLLC dba Peter Marino Architect; and Quanex IG Systems, Inc.

Cross-Defendant Quanex Building Products Corporation

Complainant-in-Intervention Navigators Specialty Insurance

Company

OPPOSING PARTY

None

BACKGROUND

This case arises from allegations of construction defects to Plaintiff's single-family residential property.

On December 28, 2023, Plaintiff Chalon Holdings LLC ("Plaintiff") brought suit against the general contractor, Peter McCoy Construction ("McCoy") as well as Architectural Iron Works, Inc. ("AIW"); Kairos Manufacturing, Inc. dba Architectural Iron Works ("Kairos"); West Coast Insulated Glass Products ("WCP"); and Peter Marino Architect, PLLC dba Peter Marino Architect ("Marino"). Quanex IG Systems, Inc. ("Quanex Inc.") was also named as Defendant Doe 2 via amendment.

The Complaint alleges eight causes of action for (1) breach of contract; (2) breach of implied covenant; (3) breach of express warranty; (4) negligence; (5) breach of implied covenant; (6) breach of express warranties; (7) negligence; and (8) negligence.

On February 22, 2024, WCP, Inc. (erroneously sued as West Coast Insulated Glass Products) cross-complained against Moe 1 through 100 for (1) implied indemnity; (2) express indemnity; (3) contribution; (4) declaratory relief; and (5) duty to defend. WCP later named Navigators Specialty Insurance Company ("Navigators") in place of Moe 1, Peter McCoy Construction in place of Moe 2, Kairos Manufacturing, Inc. in place of Moe 3, and Quanex Building Products Corporation ("Quanex BPC") in place of Moe 4.

On March 7, 2024, Marino cross-complained against Zoes 1 through 50 for (1) equitable indemnity; (2) contribution; (3) declaratory relief; and (4) express indemnity. Marino later named Kairos as Zoe 1, McCoy as Zoe 2, WCP as Zoe 3, and Navigators as Zoe 4.

On March 12, 2024, Kairos cross-complained against Roes 1 through 50 for (1) express indemnity; (2) breach of contract; (3) equitable indemnity; (4) contribution; (5) comparative partial indemnity; (6) declaratory relief; (7)

duty to defend; and (8) duty to indemnify.

Kairos later named WCP in place of Roe 1 and Quanex BPC in place of Doe 1 [sic].

On March 14, 2024, Navigators filed a Complaint-in-Intervention on behalf of its insured, Defendant Architectural Iron Works, Inc., a suspended California corporation.

On March 19, 2024, McCoy filed a cross-complaint against Roes 1 through 100, alleging nine causes of action for (1) implied contractual indemnity; (2) total indemnity; (3) equitable indemnity; (4) express contractual indemnity; (5) breach of express warranty; (6) breach of implied warranty; (7) breach of written contract; (8) declaratory relief (duty to defend); and (9) declaratory relief (duty to indemnify). McCoy later named AIW; Kairos; W.C.P. Inc.; and WCP West Coast Glass LLC in place of Roes 1-4, respectively.

On December 18, 2025, the Court granted Quanex BPC's motion to continue the trial from March 23, 2026 as originally scheduled to October 26, 2026, to afford Quanex BPC adequate time to prepare for trial.

All Defendants, Cross-Defendant Quanex BPC, and Complainant-in-Intervention Navigators now move to continue the trial again for another one hundred eighty (180) days.
The motion is unopposed.

LEGAL STANDARD

California Rules of Court, rule 3.1332(c), provides:

Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

(1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2) The unavailability of a party because of death, illness, or other excusable circumstances;

(3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5) The addition of a new party if:

(A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

Factors the Court considers in ruling on a motion for continuance include:

(1) The proximity of the trial date;

(2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3) The length of the continuance requested;

- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer as a result of the continuance;
- (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
- (7) The court's calendar and the impact of granting a continuance on other pending trials;
- (8) Whether trial counsel is engaged in another trial;
- (9) Whether all parties have stipulated to a continuance;
- (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and
- (11) Any other fact or circumstance relevant to the fair determination of the motion or application.

(Rule 3.1332(d).)

ANALYSIS

Movants request a trial continuance on the following grounds:

- (1) Experts presented findings at a recent mediation that advanced a new theory about the cause of the Superspacer migration in the Insulated Glass Units at the heart of this case. (Retz Decl. ¶ 3.) Additional testing was scheduled to be conducted on August 18 and 19 (Retz Decl. ¶ 4), and it takes the laboratory approximately three (3) weeks thereafter to analyze the findings and an additional one (1) week after that for the experts to evaluate the laboratory results and

update their opinions. As a result, no expert depositions can begin until at least September 16, 2026. There are twenty-seven expert depositions that need to be taken, so the parties will not be ready in time for the current October 26 trial date.

(2) Between July 6, 2026 and August 7, 2026, Plaintiff produced nearly 40,000 pages of documents that Defendants need time to review. Further, Defendants have identified additional discovery that must be propounded, in light of the newly-produced documents. (Retz Decl. ¶ 7.)

(3) Trial counsel for Quanex will be on maternity leave during the currently-scheduled October trial date. (French Decl. ¶ 3-5.)

Therefore, the Court finds good cause to continue the trial and all related discovery and motion cut-off dates to accommodate both (1) the additional discovery that was necessitated by recent discoveries at mediation and Plaintiff's recent voluminous document production and (2) Quanex's trial counsel's maternity leave.

CONCLUSION AND ORDER

Therefore, the Court grants the parties' unopposed motion for a trial continuance, and orders as follows:

· The Trial is continued to June 28, 2027 at 10:00 A.M. in Department 207.

The Final Status Conference is continued to June 11, 2027 at 9:30 A.M. in Department 207.

All Discovery and Pre-Trial Motion Cut Off Dates shall be associated with the new trial date.

The Court issued a Trial Preparation Order on August 7, 2024. The Parties shall obtain a copy of the Order and comply with it. Further, all parties are reminded that the Final Status Conference

is an in-person appearance by ALL trial counsel. Failure to comply with the Order may warrant the issuance of sanctions including but not limited to terminating sanctions.

Per the Discovery Act, the Court orders the parties to meet and confer forthwith to schedule and complete all Expert and Non-Expert Discovery to obviate the need for a further continuance of the Trial.

No further continuance of the Trial
absent sufficient good cause.

Further, the Court orders the parties to meet and confer, and amend the Case Management Order in conformance with the ruling. The Amended Case Management Order shall be filed on or before September 24, 2026.

Counsel
for WCP shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 28, 2026 _____/s/_____

Michael
E. Whitaker

Judge
of the Superior Court